

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate Transmission System	))))	Docket No. RM26-4-000
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**SUPPLEMENTAL COMMENTS OF
THE SOUTHERN COMPANIES**

Pursuant to the Federal Energy Regulatory Commission’s (“Commission” or “FERC”) October 27, 2025 Notice Inviting Comments in the captioned proceeding, Georgia Power Company (“Georgia Power”), Alabama Power Company (“Alabama Power”), and Mississippi Power Company (“Mississippi Power”) (together, “Southern Companies”) submit the enclosed Supplemental Comments for the Commission’s consideration. Southern Companies re-emphasize their support for timely and cost-effective integration of large-load customers to support growth and enable economic development and bolster the nation’s national security, in a way that protects existing customers, as called for in the Secretary of Energy’s Advanced Notice of Proposed Rulemaking (“ANOPR”).

As detailed below, Southern Companies are connecting large load retail customers quickly and efficiently, while protecting customers from cost-shifting, as identified in the ANOPR and the President’s Ratepayer Protection Pledge. Southern Companies’ progress towards “speed to power,” while protecting other customers, is a direct result of our state-regulated, vertically-integrated planning and rate structures. Southern Companies respectfully request that the Commission allow Southern Companies to continue building on this record of success and progress towards the ANOPR’s goals, while preserving the historic jurisdiction of

our state regulators over retail customer connections, the terms and conditions of which are inextricably embedded in our bundled rate mechanisms.

I. SUPPLEMENTAL COMMENTS

Southern Companies commend the Commission for its continued focus on large load issues and the importance of timely, affordable, and reliable infrastructure development needed to support growth and economic development. The ANOPR has sparked a critical national discussion about how best to achieve these objectives. Consistent with the President's Ratepayer Protection Pledge, Southern Companies have been executing with speed to get power to large load customers, with a goal of ensuring that families and small businesses benefit from that growth and continue to receive reliable and affordable electric service. Southern Companies submit the enclosed Supplemental Comments to augment the record of this proceeding and provide the Commission updated information on successful large load integration initiatives in Southern Companies' service territories.¹

A. Updated Success Data

In their Initial Comments in this proceeding, Southern Companies reported Georgia Power's initial successes in integrating large loads, including that Georgia Power had already successfully obtained Georgia Public Service Commission ("Georgia PSC") approval of three large load contracts, representing 1,900 MW of new load.² Since this proceeding opened, Southern Companies' success has continued at a remarkable pace.

¹ On May 13, 2026, Clay Rikard, Southern Company's Senior Vice President of System Planning, provided testimony on many of these issues before the Energy Subcommittee of the House Energy and Commerce Commission. His prepared remarks are posted on the Subcommittee's website at this link: [05_13_2026_ENG_Testimony_Rikard_1ce6610cfc.pdf](#).

² Preliminary Rulemaking Comments of the Southern Companies, Docket No. RM26-4, at 8 (filed Nov. 21, 2025) ("Initial Comments").

As of April 2026, 32 large load customers have committed to receive approximately 15,600 MW of electric service from Georgia Power, including executed Contracts for Electric Service for 9,572 MW of large load. In the near term, Southern Companies are finalizing 6 GW of additional large load connection agreements across Alabama and Georgia.³ Also, 10 of these 32 large load projects are already online, with another 11 currently under construction.

Southern Companies supplement the record in this proceeding with this data to provide the Commission with the most current information, so that it can tailor any action in this proceeding in a manner that propels, and does not hamper, such success in the Southeast and elsewhere.

B. Elements of Southern Companies' Success to Date

In their Initial and Reply Comments, Southern Companies explained how they have successfully integrated large loads in their service territories with a focus on speed and affordability for all customers.⁴ Southern Companies explained that their vertically-integrated structure and integrated resource planning process enable them to plan for and serve large load customers by holistically combining generation, fuel, transmission, and distribution planning.⁵ This coordinated framework operates through state-regulated bundled retail service obligations and integrated planning processes that align generation expansion, transmission development, fuel planning, and retail service commitments within a unified regulatory structure. In addition, Southern Companies explained that this structure rests on a foundation of effective state

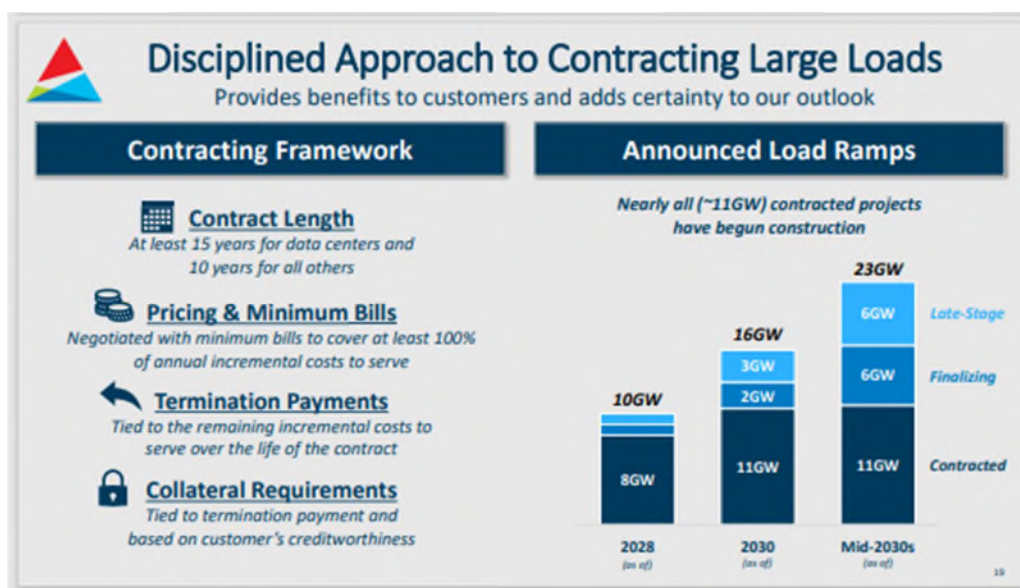
³ SOUTHERN CO., *First Quarter 2026 Earnings Conference Call* at 19, (Apr. 30, 2026) https://s27.q4cdn.com/273397814/files/doc_financials/2026/q1/SO-2026-Q1-Earnings-Call-Final.pdf.

⁴ Initial Comments; Reply Comments of the Southern Companies, Docket No. RM26-4 (filed Dec. 5, 2025) (“Reply Comments”) (collectively, with Initial Comments, “Comments”).

⁵ Initial Comments at 6-7; Reply Comments at 2.

regulation that has also kept pace through collaborative improvements, both in terms of process and substance, in order to prioritize speed and affordability.

In Georgia, for example, with the approval of the Georgia PSC, Georgia Power Company has implemented several mechanisms aimed to protect existing customers, including minimum bill obligations for large loads, long-term contractual commitments, collateral requirements, termination protection, and regulatory review and accountability for customer-specific arrangements.⁶ The following graphic, excerpted from The Southern Company's Q1 earnings presentation, illustrates these important elements of Southern Companies' large load program:⁷



C. The Benefits of State-Driven Integrated Planning

The importance of Southern Companies' integrated planning process to their large load programs cannot be overstated. Serving large loads requires a holistic analysis of system conditions and solutions to arrive at a prudent generation expansion and capital investment plan that balances

⁶ Initial Comments at 9-10.

⁷ SOUTHERN CO., *First Quarter 2026 Earnings Conference Call* at 19, (Apr. 30, 2026) https://s27.q4cdn.com/273397814/files/doc_financials/2026/q1/SO-2026-Q1-Earnings-Call-Final.pdf.

speed, reliability, and affordability. Unlike regions that rely principally on fragmented market structures or separated transmission and resource planning functions, Southern Companies' planning framework permits coordinated evaluation of generation, transmission, distribution, fuel supply, customer commitments, and retail service obligations within a single integrated planning process subject to state oversight. Southern Companies' integrated planning processes take into account projected load growth, potential generation expansion, transmission build outs, distribution investments, retail service obligations, fuel planning, and large load contracting that are evaluated through coordinated processes under state regulatory oversight. Southern Companies' experience demonstrates that coordinated state-regulated planning structures can support more timely generation development and reduce interconnection delays relative to regions currently experiencing substantial queue backlogs and infrastructure constraints. These differing regional conditions support preserving flexibility for frameworks already providing coordinated and timely infrastructure development. For example, after Georgia Power completed its triennial integrated resource planning process in 2022, and in response to growing demand from large loads, including data centers, Georgia Power filed an off-cycle Integrated Resource Plan Update in October 2023 as allowed by GPSC rules, requesting 3,300 MW of new generation capacity. By April 2024, the Georgia Public Service Commission approved Georgia Power's total requested capacity and guaranteed downward pressure on customers' rates for years 2026-2028, further demonstrating the effectiveness and flexibility of state regulation to adjust to changing circumstances, and an emphasis on speed for large loads and affordability for all customers.

Further, Southern Companies’ integrated resource planning process, vertically integrated structure, and existing regulatory regime, have yielded no generation interconnection queue backlog. These results highlight the significant differences between regions and the need for the Commission to act in a way that preserves efficient state-led frameworks and allows companies like the Southern Companies to keep executing on our—the Southern Companies, FERC, and the Administration—shared objectives of quickly bringing power to all customers as reliably and affordably as possible.

D. Affordability as a Centerpiece

Affordability has been a central tenet to Southern Companies’ successful integration of large loads to date. Southern Companies have integrated large volumes of new loads in a manner that not only protects existing customers from additional costs, but actually benefits these existing customers through allocating fixed-cost recovery across a broader customer base. The successful components detailed above – namely, minimum terms and bills, protective termination provisions, and appropriate collateral protection – have provided a reliable framework under which new large loads will not be subsidized by other customers.

In December 2025, the Georgia PSC voted to approve an agreement with the Public Interest Advocacy Staff and Georgia Power that certified the construction of 9,885 MW of new energy generation, almost all of which is expected to come online by 2030, much of which to support new large load customers. This is one of the largest single generation expansions by a company in U.S. history. The Georgia PSC concluded that its order protects existing ratepayers from increased rates, even if the data center projections do not come to fruition.⁸ In fact, these

⁸ GEORGIA PUB. SERV. COMM’N, *Data Center Fact Sheet*, at 2 (March 2026), <https://psc.ga.gov/site/downloads/datacenterfactsheet.pdf>.

new generation resources will ensure durable integration of large loads and are projected to result in at least \$1.6 billion in savings for Georgia customers (equivalent to anticipated savings for the typical Georgia ratepayer of \$100 per year) when Georgia Power files its next base rate case.

As further evidence of this successful approach to affordability, Georgia Power committed to a three-year base rate freeze. This rate freeze was made possible in large part by Georgia Power's success in signing up large load customers in conjunction with the rules and regulations implemented by the Georgia PSC that ensure large load customers pay all of the costs incurred to serve them.⁹ Alabama Power also recently announced it will enact a rate stabilization program through 2027, which is expected to yield customer benefits as Alabama Power integrates large load projects.¹⁰ Southern Companies' proactive actions are aimed at creating downward pressure on rates, which not only helps protect existing customers from subsidizing large loads, but helps them to share in the benefits of that tremendous growth.

II. CONCLUSION

Southern Companies again commend the Commission for its attention to this historic challenge. We respectfully suggest that any federal initiative that comes from this proceeding preserve well-functioning state-led frameworks that can help deliver speed and affordability. The record of this proceeding demonstrates significant regional differences that may justify more reforms in some areas that have not yet seen the type of success that has occurred in the Southeast. Indeed, various regions face differing operational structures, regulatory frameworks, resource mixes, and interconnection challenges, and targeted reforms may be appropriate in certain markets. Southern Companies are similarly aware of the difficult jurisdictional issues

⁹ *In Re: Georgia Power Co.'s 2022 Rate Case*, No. 44280, 2025 WL 2218241 (July 31, 2025).

¹⁰ ALABAMA POWER, *Alabama Power Commits to Steady Rates Through 2027*, (Dec. 2, 2025) <https://www.alabamapower.com/press-releases/2025/alabama-power-commits-to-steady-rates-through-2027.html>.

presented in this proceeding, as previously raised in their Comments.¹¹ Given the success of state-regulated integrated resource planning and bundled retail service frameworks in integrating large load customers, such as in Southern Companies' territories, a one-size-fits-all rule would be counterproductive. Federal reforms should not inadvertently impair state-regulated planning and retail-service frameworks that are already rapidly developing generation, transmission, and customer-specific infrastructure needed to support large-load growth. Any federal reforms adopted in this proceeding should preserve the flexibility for states and vertically integrated utilities to continue to use coordinated bundled-service structures that are already delivering timely infrastructure development, customer protections, and reliable service. To the extent the Commission determines that additional near-term federal reforms are appropriate, those reforms should focus principally on regions where wholesale market structures, transmission service constructs, and Commission-jurisdictional processes are directly implicated.

[Signatures on following page]

¹¹ Initial Comments at 13; Reply Comments at 5.

Respectfully submitted,

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On behalf of the Southern Companies

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